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County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-07-07

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Case Number: 26VECV00559 Hearing Date: July 7, 2026 Dept: NWI

26VECV00559 KELLI

DAVIS vs EZ PLUMBING & ROOTER, INC., A CALIFORNIA COMPANY, et al.

July 7, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Demurrer with

Motion to Strike

I.

Background

On January 28, 2026, Plaintiff Kelli

Davis (“Plaintiff”) filed a complaint against Defendants EZ Plumbing &

Rooter, Inc. (“EZ Plumbing”), Dominic Anthony Quattlebaum (“Quattlebaum”), and

Does 1 to 20 alleging four causes of action: (1) motor vehicle negligence; (2) general negligence; (3) negligent supervision and hiring; and (4) intentional infliction of emotional distress.

On May 7, 2026, Plaintiff filed her

first amended complaint (“FAC”).

On June 8, 2026, Quattlebaum filed the

instant demurrer to and motion to strike portions of Plaintiff’s FAC.

On June 23, 2026, Plaintiff filed her

opposition to the motion to strike.

On June 29, 2026, Quattlebum filed his reply.

On the same day, Plaintiff filed an unauthorized surreply.

II. Legal Standards

Cal. Code of Civ. Proc. § 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a))(emphasis added.) CCP § 435.5(a) has an identical meet and confer requirement for motions to strike.

Defense counsel declares that, on April 17, 2026, he sent a meet and confer letter to Plaintiff’s counsel regarding the instant demurrer and motion to strike. (Berman Decl. ¶ 5; Exh. B [meet and confer letter].) However, CCP §§ 430.41(a) and 435.5(a) require the parties to meet and confer in person, by telephone, or by video conference. (CCP § 430.41(a) and 435.5(a))(emphasis added.) Accordingly, defense counsel’s letter fails to meet the statutory meet and confer requirements of CCP §§ 430.41 and 435.5.

The Court uses its discretion to continue hearing on the instant demurrer to July 27, 2026 and orders counsel to meet and confer, either in person, by telephone, or by video conferencing, and to file a declaration regarding the same. (See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45

Cal.App.5th 348, 355-356 [holding that trial courts are not required to ignore defects in the statutory meet and confer process and retains discretion to order counsel to meaningfully discuss the pleadings].)

Moving party to give notice.